

Manual 36 — Brazil LGPD Controlled Implementation

****Language:**** English

****Controlled baseline:**** Lei nº 13.709/2018 (LGPD) as currently in force, plus binding ANPD regulations verified 2026-08-31.

****Boundary:**** Statute, binding ANPD regulation, ANPD guidance/enforcement, sector law, contract, and organization practice remain separate. This is implementation guidance, not legal advice or regulatory approval.

Chapter 01 — Purpose, Scope, and Controlled-Source Hierarchy

Use the consolidated LGPD and binding ANPD instruments as controlling privacy sources for covered processing. Classify advisory guidance, enforcement facts, sector rules, contracts, and internal procedures by status and date rather than blending them into the statute.

Maintain a dated source register, applicability owner, material-change watch, and evidence that release-time legal sources were reverified.

Chapter 02 — LGPD Applicability, Territorial Reach, and Jurisdiction Analysis

Document why a processing activity is within or outside LGPD territorial scope, considering processing in Brazil, offering goods/services to individuals in Brazil, and collection of data in Brazil, together with statutory exclusions and sector overlays.

Evidence should include the applicability assessment, facts relied upon, responsible reviewer, exceptions, and reassessment triggers.

Chapter 03 — Personal Data, Sensitive Data, and Processing Concepts

Maintain controlled definitions for personal data, sensitive personal data, anonymized data, processing, database, data subject, controller, operator, and related concepts. Resolve internal terminology conflicts before they reach notices, contracts, systems, or incident records.

Evidence includes the controlled glossary, data classification rules, examples, decision records, and terminology-change history.

Chapter 04 — Controller, Operator, Encarregado, and Accountability Roles

Identify controller and operator responsibilities for each processing relationship and maintain the encarregado/DPO governance required by applicable LGPD and ANPD rules. Role allocation must follow actual decision authority and processing facts, not contract labels alone.

Maintain role matrices, appointments, contact channels, instructions, escalation routes, and accountability records.

Chapter 05 — Governance Model, Policies, and Privacy Responsibilities

Establish approved privacy governance with executive accountability, policy ownership, operating roles, risk escalation, assurance, and periodic management review. Integrate privacy governance with security, legal, product, procurement, data, HR, and business processes.

Evidence includes policies, charters, RACI matrices, meeting records, issue registers, and corrective-action tracking.

Chapter 06 — Processing Inventory and Records

Maintain a current inventory of processing activities, systems, datasets, purposes, data categories, sensitive data, data subjects, lawful bases, recipients, operators, transfers, retention, security controls, and accountable owners.

Use change-management triggers to update the inventory when products, vendors, purposes, data flows, technologies, or legal conditions change.

Chapter 07 — Lawful Bases and Purpose/Necessity Analysis

Record the applicable LGPD legal basis for each material processing purpose and separately test purpose legitimacy, adequacy, and necessity. Do not substitute consent where another basis is actually relied upon or assume one basis covers unrelated secondary uses.

Maintain lawful-basis records, purpose statements, necessity assessments, approvals, exceptions, and reassessment dates.

Chapter 08 — Consent Governance and Withdrawal Controls

Where consent is the basis, design collection to be demonstrable, specific to the stated purpose, and capable of withdrawal through controlled processes. Prevent dark patterns, bundled purposes, or system behavior that continues consent-based processing after valid withdrawal without another documented basis.

Evidence includes consent text/version, timestamp, source, withdrawal record, downstream propagation, exceptions, and testing results.

Chapter 09 — Legitimate-Interest Assessment and Balancing

Where legitimate interest is relied upon, document the purpose, necessity, data-subject expectations, impacts, safeguards, transparency, and balancing conclusion. Escalate uses with significant intrusion, sensitive contexts, children, monitoring, profiling, or unexpected secondary use.

Maintain the assessment, supporting facts, mitigating controls, approval, review date, and change triggers.

Chapter 10 — Children’s and Adolescents’ Data Governance

Treat processing involving children and adolescents as a heightened-governance area requiring specific applicability and best-interest analysis. Preserve age-related facts, parental/guardian processes where applicable, transparency, minimization, security, and product-design safeguards.

Evidence includes age/risk assessment, notices, consent or other legal analysis, design review, testing, complaints, and remediation.

Chapter 11 — Data-Subject Rights Operations

Operate a documented intake, identity-verification, routing, search, decision, response, correction, portability/change-watch, deletion, objection, and escalation process for LGPD rights. Do not promise a right or deadline beyond the current legal source without identifying it as policy or service commitment.

Maintain request logs, identity evidence, searches, decisions, response records, exceptions, and performance metrics.

Chapter 12 — Transparency Notices and Information Duties

Keep notices accurate to actual processing, purposes, sharing, rights, controller identity, encarregado contact, transfers, material automated processing, and other required information. Reconcile notices to inventories, contracts, products, and changes before release.

Evidence includes notice versions, approvals, publication dates, change records, readability review, and system-to-notice reconciliation.

Chapter 13 — Data Quality, Minimization, Retention, Deletion, and Anonymization

Collect and retain only data necessary for defined purposes, maintain reasonable accuracy controls, and enforce defensible retention/deletion rules. Treat anonymization claims as technical/legal conclusions requiring evidence that re-identification risk is appropriately addressed for the use case.

Maintain retention schedules, deletion evidence, quality controls, anonymization assessments, exceptions, and backup/disposal handling.

Chapter 14 — Privacy by Design/Default and Change Management

Embed privacy requirements into product, system, procurement, analytics, AI, and process lifecycle gates. Require privacy review before material changes in purpose, data categories, recipients, transfer locations, profiling, monitoring, or high-risk technology.

Evidence includes design checklists, architecture decisions, DPIA/risk artifacts, approvals, test results, and change tickets.

Chapter 15 — Security Safeguards and Administrative/Technical Controls

Implement reasonable administrative, technical, and physical safeguards proportionate to data sensitivity, volume, threats, processing context, and business impact. Integrate IAM, secure configuration, logging, vulnerability management, encryption, resilience, secure development, monitoring, and incident response.

Maintain control mappings, test evidence, vulnerabilities, exceptions, remediation, risk acceptance, and management reporting.

Chapter 16 — Security Incidents and ANPD/Data-Subject Notification

Use a documented incident process aligned with the current ANPD incident-communication regulation. Determine whether an event involves personal data, assess relevant harm/risk and notification criteria, preserve decision timing, and coordinate ANPD and data-subject communications when legally required.

Evidence includes incident facts, assessment, decision authority, notification records, timestamps, remediation, communications, and lessons learned.

Chapter 17 — Risk Assessment, Privacy Impact, and High-Risk Processing

Apply privacy-risk and impact assessment to material or high-risk processing, including scale, sensitive data, vulnerable groups, monitoring, profiling, new technologies, and significant automated decisions. Use current ANPD requirements and requests regarding impact reports when applicable.

Maintain risk methodology, assessment, residual risk, safeguards, approvals, review cycle, and evidence of remediation.

Chapter 18 — International Transfers and Transfer Mechanisms

Apply LGPD and the current ANPD international-transfer regulation to covered transfers. Determine territorial applicability, legal basis, valid transfer mechanism, transparency, onward-transfer conditions, and contractual/organizational safeguards. Preserve the 2025 rectification and current adequacy decisions in source control.

Evidence includes transfer inventory, mechanism selection, adequacy decision where used, standard clauses or approved mechanism, due diligence, contract, and reassessment.

Chapter 19 — Vendor, Operator, and Subprocessor Lifecycle Controls

Risk-assess operators, subprocessors, cloud providers, SaaS vendors, and other recipients before use and throughout the relationship. Define instructions, permitted purposes, security, assistance, incidents, transfers, retention, audit rights, and exit requirements.

Maintain due diligence, contracts, operator register, subprocessor changes, monitoring, issues, and termination evidence.

Chapter 20 — Contracts, Instructions, Confidentiality, and Shared Responsibility

Translate privacy requirements into clear controller/operator instructions and contract terms without using contract labels to override actual legal roles. Identify shared responsibilities, security duties, rights-support obligations, transfer conditions, incident cooperation, and evidence retention.

Evidence includes executed terms, responsibility matrix, instruction history, confidentiality controls, amendments, and dispute/escalation records.

Chapter 21 — Cloud, SaaS, Managed Service, and Cross-Border Processing

Map cloud and managed-service data locations, administrators, subprocessors, telemetry, backups, support access, encryption, deletion, resilience, and international flows. Resolve transfer mechanism and operator responsibilities before production use.

Maintain cloud inventory, architecture/data-flow maps, shared-responsibility evidence, configurations, contracts, transfer assessments, and exit plans.

Chapter 22 — Marketing, Profiling, Automated Decisions, and Analytics

Govern direct marketing, profiling, analytics, personalization, and automated decisions with documented lawful basis, transparency, minimization, data quality, rights support, review mechanisms, and anti-discrimination controls as applicable. Do not overstate the scope of statutory automated-decision rights without current legal analysis.

Maintain use-case assessments, models/rules, notices, opt-out or rights handling, review evidence, metrics, and complaints/remediation.

Chapter 23 — Workforce Privacy, Access, Monitoring, and Training

Apply LGPD governance to employee, candidate, contractor, and workplace data while separately mapping employment and labor requirements. Limit access and monitoring to documented purposes with proportionate controls, transparency, retention, and escalation.

Evidence includes workforce notices, access reviews, monitoring assessment, retention rules, training, investigations, and exception records.

Chapter 24 — Physical Records and Non-Digital Personal Data

Include paper files, archives, visitor records, physical media, mail, and other non-digital processing within privacy inventories and safeguards where LGPD applies. Control storage, access, transport, copying, retention, destruction, and incident handling.

Maintain physical-record inventories, access controls, disposal certificates, facility reviews, and incident evidence.

Chapter 25 — Small Processing Agents and Differentiated Treatment

Determine whether ANPD differentiated rules for small processing agents apply to the organization and specific obligations. Do not treat small-agent status as a blanket exemption from LGPD principles, security, rights, or other non-waived duties.

Maintain eligibility analysis, applicable simplifications, retained obligations, review triggers, and evidence of compliance.

Chapter 26 — ANPD Regulations, Guidance, Inspections, Sanctions, and Enforcement Readiness

Maintain an obligation register distinguishing binding ANPD regulations from guidance, FAQs, public consultations, enforcement facts, and future agenda items. Prepare evidence for inspection and sanctioning processes without treating enforcement outcomes in other cases as universal legal rules.

Evidence includes regulatory register, inspection protocol, legal holds, response packages, sanction-risk analysis, findings, and corrective actions.

Chapter 27 — Sector and Adjacent-Law Overlay Mapping

Map consumer, employment, financial, health, telecom, digital-platform, child-protection, cybersecurity, records, and other relevant Brazilian requirements separately from LGPD. Where multiple regimes apply, identify the stricter or additional control without mislabeling its source.

Maintain an overlay matrix, owners, citations, applicability decisions, conflicts, and change watch.

Chapter 28 — Evidence Architecture, Audit Trail, and Accountability Records

Design a traceable evidence model linking requirement, owner, procedure, system/control, test, exception, remediation, and decision. Protect evidence integrity, access, retention, confidentiality, and version history.

Maintain evidence indexes, control maps, workpapers, approvals, logs, findings, remediation, and provenance records.

Chapter 29 — Exceptions, Remediation, Risk Acceptance, and Management Reporting

Require documented exceptions with scope, rationale, compensating controls, owner, approval, duration, residual risk, and expiration. Escalate overdue or high-impact privacy issues to appropriate management and legal/privacy leadership.

Maintain exception registers, corrective actions, risk acceptances, dashboards, escalation records, and closure evidence.

Chapter 30 — Regulatory Change Watch and ANPD Reassessment Triggers

Monitor consolidated LGPD text, ANPD regulations, amendments/rectifications, adequacy decisions, regulatory agenda, priority topics, material guidance, court/sector developments where relevant, and organizational changes that affect applicability.

Maintain dated source snapshots, change assessments, owners, implementation plans, effective dates, and candidate-supersession decisions.

Chapter 31 — Exact-Hash Review, Localization, Provenance, and Release Evidence

Freeze approved controlled source before candidate generation. Bind EN/es-419/pt-BR DOCX/PDF artifacts to exact SHA-256 identities and preserve accessibility, rendered-page, source, localization, workflow-security, and release-QA evidence.

Any material change after candidate freeze requires explicit supersession, regeneration, re-hashing, and re-review of affected gates.

Chapter 32 — Implementation Roadmap, Maturity, and Release-Time Reverification

Implement in prioritized phases: applicability and inventory, governance and lawful bases, rights/notices, security/incidents, transfers/vendors, high-risk processing, assurance/evidence, and continual improvement. Track maturity through evidence-backed outcomes rather than policy completion alone.

Immediately before publication, reverify the consolidated LGPD, current ANPD regulations and rectifications, incident rules, DPO rules, transfer mechanisms/adequacy decisions, small-agent treatment, sanctions/enforcement process, and material sector overlays. Publication remains sequential after Manual 35 and requires all deterministic release gates to be green.